

Defendant has filed a Motion to change venue. The Motion was originally scheduled for a hearing on 6/23/26, but the court continued it to 8/25/26. Defendant notified Plaintiff of the Motion and the 6/23/26, hearing by mail service. The court then notified both parties of the 8/25/26, hearing.

The Motion is unopposed.

Background

Defendant seeks to move the venue of this lawsuit to Orange County, under Sections 395 and 397 of the CCP.

The Complaint alleges a breach of contract stemming from an auto lease agreement. The purported lease is attached to the Complaint, and indicates that the lessor, a Ford car dealership, has a business address in Concord, CA. The lessor is identified as Future Ford Of Concord, LLC, and the lease is signed by the sales manager.

Defendant argues that Contra Costa County is not the right venue because he resided in Alameda County at the inception of the agreement and now lives in Orange County.

He claims that it will be too difficult to defend his case from several hundre miles away.

Analysis

Section 395(b) of the CCP states that, where an action involves the provision of goods, loans or credit, the proper county for the action is the one in which the parties signed the agreement.

Section 397 of the CCP indicates that a court can change the venue of a trial when the complaint is not in the proper court, or, when the convenience of the witnesses and the ends of justice would be promoted by the change.

In the instant matter, the lease was apparently signed in Contra Costa County, so this county is the proper one. Thus, whether the court honors Defendant's request hinges on convenience and the ends of justice.

However, it is not clear to the court that were would be much in the way of inconvenience to the Defendant if the case were tried in this county. All appearances, except for trial, can be made by zoom without prior approval. And, even for trial, the Defendant can also request to appear by zoom and offer as a reason the cost and inconvenience of attending trial in this county in person.

Disposition

Defendant's Motion is denied.

Plaintiff to file Order and serve on Defendant.

13. 9:00 AM CASE NUMBER: L26-01493
CASE NAME: VICTORIA WILLIAMS VS. INDIO MARQUEZ
MOTION TO VCATE ENTRY OF DEFAULT

FILED BY:

TENTATIVE RULING:

Defendant filed a Motion to set aside entry of default, under Section 473(b) of the CCP. Plaintiff filed a Response and a Declaration.

Default was entered on 5/15/26.

Background

Defendant claims excusable neglect, under Section 473(b) of the CCP as the reason she failed to file a timely answer to the Complaint, which was filed on 2/13/26. Specifically, she contends that she had an emergency operation on 4/2/26, and that she lost her job, permanently, on 7/31/26.

In her declaration, she writes that she was “heavily incapacitated and under intense post-operative care” when she was served with process on 4/6/26. As proof of this, Defendant included an exhibit which appear to be from a surgeon’s clinic and reflects that she should be out of work for a number of weeks beginning 4/6/26.

Defendant also provided another exhibit which reflects that she attempted to serve an Answer on Plaintiff, by mail, on 5/19/26.

Plaintiff argues that Defendant had plenty of time to file an Answer, whether or not she underwent a medical procedure.

This court also notes that Defendant’s Motion was filed approximately only one month after entry of default, and approximately only 4 months from the filing of the Complaint.

Analysis

Section 473(b) of the CCP permits a court to set aside entry of default when the defaulting party did so because of excusable neglect.

Courts must construe the statute liberally in order “to prevent injustice and to enable litigants to have their case heard on the merits. *Frank E. Beckett Co. v. Bobbit* (1960) 180 Cal. App. 2d Supp. 921, 924. “Even in a case where the showing under section 473 is not strong, or where there is any doubt as to setting aside of a default, such doubt should be resolved in favor of the application.” *Van Dyke v. MacMillan* (1958)162 Cal. App.2d 594, 598.

In this matter, this court is satisfied, by a preponderance of the evidence, that Defendant underwent a serious medical procedure, and that this had an effect on her ability to properly file an Answer.

Disposition

Defendant's Motion is granted.

Defendant shall file her Answer within 10 calendar days of today, 8/28/26, and serve the Plaintiff.

Defendant shall file and serve the Order.

14. 9:00 AM CASE NUMBER: L26-02264
CASE NAME: 1ST UNITED CREDIT UNION VS. VERONICA RAMOS, AN INDIVIDUAL
MOTION FOR JUDGMENT ON THE PLEADINGS FILED BY PLN ON 5/29/26
FILED BY: 1ST UNITED CREDIT UNION

TENTATIVE RULING:

This was vacated.

15. 9:00 AM CASE NUMBER: L26-04339
CASE NAME: ROBERT JOHANSON VS. PAMELA TORRES
PETITION FOR JUDICIAL DECLARATION OF ABANDONMENT OF MOBILE HOME
FILED BY: JOHANSON, ROBERT H

***TENTATIVE RULING**

Plaintiff has filed a Petition for Declaration of Abandonment of a Mobile Home, but there is no proof that they served the Petition on the Defendant.

Disposition

This Petition will be continued 10/15/26, 10am.

Plaintiff must provide notice of the hearing date to Defendant, and must serve a copy of the Petition and Summons.